

Sanjeet Kumar Singh @ Sanjeet Kumar vs The State Of Bihar on 8 January, 2010

Author: Dharnidhar Jha

Bench: Dharnidhar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
Cr.Misc. No.38035 of 2009
SANJEET KUMAR SINGH @ SANJEET KUMAR
Versus
THE STATE OF BIHAR

3. 8.1.2010

Heard.

After about one year and five months of the marriage of the petitioner to the complainant, the petitioner preferred a matrimonial petition seeking dissolution of his marriage to the complainant before the Principal Judge, Family Court, Vaishali at Hajipur. The ground which was taken by the petitioner and which has also been urged before me during the course of hearing of the present petition is that the lady was suffering from some sort of mental disability or, in other words, insanity. It could be a ground for dissolution of the marriage as per Section 5 of the Hindu Marriage Act but it is very difficult to act upon the submission of the petitioner made before the Principal Judge in absence of any acceptable material, specially, when the draft of the Matrimonial Petition brands the lady as a person suffering from psychopathic disorder which, to me, is a very serious mental disorder which could not be acceptable to any court without any valid medical check up by some organized institutions or experts. Whether it is a truth or it is simply a ploy to create a ground for dissolving the marriage is not yet known to the courts inasmuch as there is no order placed before me that indeed the lady suffers from any of the disabilities or mental illness.

In that view, I direct the court below to secure the appearance of the lady before it by drawing up an order in that behalf in Mahua P.S. Case No. 161 of 2009 and direct the Investigating Officer of the case to produce the lady before it on a particular date with her father or any close relative. The petitioner shall consistently obtain an information from the office of the Chief Judicial Magistrate, Vaishali at Hajipur about the issuance of notice and shall appear before the court below and during that course when the court sits with the lady for verifying the factual correctness of the averment of the petitioner in his Matrimonial Petition, the petitioner shall not be arrested. If the court finds that the lady does not suffer from any disorder as claimed by the petitioner, then it shall act as per law, may be by remanding the petitioner to custody also, else, on being satisfied about the ground taken by the petitioner, the court below shall admit the petitioner to bail on furnishing bond to its own satisfaction.

The petition stands disposed of with the above observations/ directions.

Let this order be communicated to the Chief Judicial Magistrate, Vaishali, Hajipur in the above noted case through fax at the cost of the petitioner.

(Dharnidhar Jha, J.) Kanth